

***Dhimmi* blasphemy: diversity and evolution in Islamic law¹**

It is said that blasphemy by *dhimmīs*² was considered a capital offence by the classical jurists of Islam. This is the summary import of ‘the standard scholarly work on the law of non-Muslim subjects,’³ by Antoine Fattal.⁴ The Ḥanbalī jurist Ibn Taymiyya (d. 728/1328), in his famous monograph on punishing blasphemers, presents a not dissimilar overview.⁵

It is worth quoting a passage from the former to see in what light this general agreement is presented:

“Blasphemy against God, the Prophets and the Angels is punishable by death according to the Mālikīs, Shāfi‘īs, and Ḥanbalīs. For a Muslim, such a crime is tantamount to apostasy, and for a *dhimmī*, to a breach of the *dhimma* contract. A *dhimmī* who commits blasphemy can, however, escape the death penalty by converting to Islam. According to al-Shāfi‘ī, he can escape this punishment simply by repenting. Conversely, according to Ibn Taymiyyah, he cannot escape it under any circumstances, not even by converting. Among the Ḥanafīs, the punishment of a *dhimmī* guilty of blasphemy is left to the judge's discretion. In cases of extreme gravity, this punishment can extend to the death penalty.”⁶

From this we learn, about the four Sunni legal schools, that:

- (a) they all permitted, in some circumstances, the death penalty for *dhimmī* blasphemers
- (b) three of them mandated it (unless averted by conversion and the like)
- (c) the ground of the death penalty was the breaching of the *dhimma* contract
- (d) these are the doctrines of the schools per se, with little or no significant internal disagreement (so it is implied)
- (e) Ibn Taymiyya (again, by implication), is an outlier in insisting on the death penalty even in cases of conversion

Fattal additionally cites ten examples of *dhimmīs* sanctioned for this offence, from the time of the Prophet up to the 8th / 14th century. In nine cases, the *dhimmī* was killed. From this we might conclude that:

¹ What follows is an excerpt from the first part of my full paper on this topic. Word count: 1998 words.

² In general in classical Islamic law: non-Muslim subjects of Muslim polities, whose lives were protected in return for non-belligerence and payment by adult males of a poll-tax (the *jizya*).

³ Melchert, ‘Why non-Muslim subjects are to pay the *jizya*’, 347.

⁴ Fattal, *Statut*, 122-4.

⁵ Ibn Taymiyya, *Ṣārim*, 1/3-11. A more convenient presentation is found in: Ba‘lī, *Mukhtaṣar al-Ṣārim*, 31-5. Ibn Taymiyya claims that this is the express position [*naṣṣ*] of three of the four major Sunni law school founders; and that most adherents of the remaining school, the Ḥanafīs, permit discretionary capital punishment.

⁶ Fattal, *Statut*, 122.

- (f) the death penalty was the most applied sanction against *dhimmī* blasphemers (Fattal says so explicitly)⁷
- (g) the traditional material (Prophetic, companion, successor reports etc.), clearly supports this penalty.

I will argue that each of these propositions is questionable or substantively incorrect. Fattal's account suggests broader juristic agreement,⁸ more static underpinning legal reasoning, and a less equivocal traditional background than obtained. As I also show below: it took some time for the issue of *dhimmī* blasphemy to enjoy juristic salience at all; and the traditional material supporting capital punishment developed slowly and imperfectly. We must, then, look beyond early Islamic sources for the origins of the punitive position; at the end of this article, I make some preliminary suggestions.

I. The legal schools

(i) The Ḥanafīs

Starting with the Ḥanafīs, their doctrine, from the earliest statements on the matter up to the 9th/15th century, is that the *dhimmī* blasphemer may *not* be killed.

The Egyptian jurist al-Ṭaḥāwī (d. 321/933) is their earliest source I have identified on the matter. He says “If someone insults the Messenger of God or belittles him, he thereby becomes an apostate. And if a *dhimmī* does so, he is to be punished (*yu'addab*) but he may not be killed.”⁹ Up to the early 9th century AH, there are at least eight subsequent jurists from the Iraqi¹⁰ and Transoxanian¹¹ schools and elsewhere¹² who expressly concur; countless additional jurists who can only reasonably be read as agreeing;¹³ and none I have found who disagree.¹⁴ Several authors, aware that some non-Ḥanafīs permit the death penalty, apply themselves in refuting them.¹⁵ Importantly, there is no suggestion in our sources that a judge has the discretion to sentence a *dhimmī* blasphemer to capital punishment. On the contrary,

⁷ Fattal, *Statut*, 122.

⁸ In assessing the evidence, we must not conflate distinct questions of law. So, the jurists agreed that a non-*dhimmī* belligerent (*ḥarbī*) blasphemer may be killed, as belligerents *in general* may be killed, excluding women and the like (Ibn Rushd, *Bidāya*, 314-6; and Peters, *Jihad*, 33-6). Most, but not all, thought that the Muslim blasphemer became an apostate and merited the death penalty (ibn Ḥazm, *Muḥallā*, 12/431).

⁹ Ṭaḥāwī, *Mukhtaṣar*, 262 (also: Jaṣṣāṣ, *Mukhtaṣar al-Ikhtilāf*, 3/504). The key term, *ta'dīb*, refers to discretionary punishment that is neither capital nor amputative/excisory, and typically took the form of flogging (a maximum of 39 stripes), but could be as lenient as a harsh word or look from the presiding judge. See: Jaṣṣāṣ, *Sharḥ al-Mukhtaṣar*, 6/206-8; Ghaznawī, *Ḥāwī*, 2/361-2.

¹⁰ Jaṣṣāṣ, *Sharḥ al-Mukhtaṣar*, 6/141; Qudūrī, *Tajrīd*, 12/6264-7; Aqṭa', *Sharḥ al-Mukhtaṣar*, 7/172-5; Simnānī, *Rawḍa*, 732.

¹¹ Isbījābī, *Sharḥ al-Mukhtaṣar*, 4/1825-6; Ghaznawī, *Ḥāwī*, 2/451.

¹² Manbajī, *Lubāb*, 2/765-6; Ḥaddādī, *Jawhara*, 2/353.

¹³ We standardly see in Hanafī primers and commentaries of this period: (i) the ruling that a *dhimmī*'s blaspheming does not cause loss of protected status (ii) the absence of any mention of capital punishment as a possible penalty. For example: Kāsānī, *Badā'i*, 6/82-3; Marghīnānī, *Hidāya*, 2/404-5; Zayla'ī, *Tabyīn*, 3/281.

¹⁴ This negative finding is confirmed by the late Egyptian commentator, ibn Nujaym (970/1563): *Baḥr*, 5/124-5. On examining Fattal's sole reference from this period, we find that it supports killing only *ḥarbī* blasphemers, and states that the Prophet forgave *dhimmīs* who attacked him (Sarakhsī, *Sharḥ al-Siyar*, 4/1415-1421).

¹⁵ The main arguments are discussed below, at pp. 4-6.

their statements of the relevant law (and, as we shall see, their supporting justifications) rule out any such penalty.

What of the early school, prior to Ṭaḥāwī? Neither Muḥammad al-Shaybānī (d. 189/805) nor Abū Yūsuf (d. 182/798), both students of Abū Ḥanīfa and the earliest putative compilers of the Ḥanafī doctrines,¹⁶ explicitly addresses the issue.¹⁷ It remains more reasonable than not to accept Ṭaḥāwī's attribution, whether as an inference from the compilers' texts or a preservation of express material, and this is so for four reasons.

First, our founding authors provide extensive treatments of crimes that make Muslims or *dhimmīs* liable for capital punishment, and blasphemy committed by a *dhimmī* is conspicuously absent;¹⁸ this implies there is no capital penalty for the offence. Second, Shaybānī identifies only one act that nullifies the *dhimma* agreement, viz., the *dhimmī* himself decides to break it and engages in warfare against the Muslims;¹⁹ blasphemous acts, it follows, do not, and *dhimmīs*' lives remain protected under the terms of the pact.²⁰ Third, unlike on some other matters,²¹ no Ḥanafī jurist is known to have contested Ṭaḥāwī's attribution.

Finally, we have corroborating testimony from outside the school. While some of it comes from sources antipathetical to Abu Ḥanīfa,²² the apparent absence of any Ḥanafī disavowal suggests it is reliable. Thus, the Kufan hadith scholar Ibn Abī Shayba (d. 235/849) adduces two reports (one Prophetic, one a companion statement) indicating that the non-Muslim blasphemer should be killed, and pointedly notes that Abu Ḥanīfa disagrees.²³ Ahmad ibn Ḥanbal (d. 241/855) tells us that killing the non-

¹⁶ Whether key texts attributed to them are broadly theirs or the back-projected work of later jurists is disputed. Calder (*Studies*, 40-2, 48-5) argues for the latter; Sadeghi (*Logic*, 177-9), amongst others, for the former. On Calder's view, these texts should be dated to the middle of the 3rd/9th century not the late 2nd/8th. They remain our earliest internal sources and Ṭaḥāwī's later attributions may usefully be compared with them.

¹⁷ The relevant published texts are: (Shaybānī:) *al-Aṣl* (and al-Ḥākim al-Shahīd, *al-Kāfi*, for its abridgment), *al-Jāmi'* *al-Ṣaghīr*, *al-Jāmi'* *al-Kabīr*, *al-Siyar al-Kabīr* (in Sarakhsī, *Sharḥ al-Siyar*), *al-Ziyādāt* (extant only in Qāḍikhān, *Sharḥ al-Ziyādāt*), *al-Hujja 'alā ahl-Madīna* (and al-Shāfi'ī, *al-Umm: al-Radd 'alā Muḥammad ibn al-Hasan*, for summary of this otherwise only partially extant text), *al-Muwatṭa'*, *al-Āthār*; (Abu Yūsuf:) *al-Kharāj*; *al-Radd 'alā Siyar al-Awzā'i*; *Ikhtilāf Abī Ḥanīfah wa ibn Abī Layla*; *Nawādir Mu'allā*. A review of the chapters/sections on *siyar*, *jizya*, *ḥudūd*, *ta'zīr*, *irtidād* and *karāha/istiḥsān*, combined with full-text electronic searches of relevant terms (at <https://app.turath.io>), establishes this negative conclusion.

¹⁸ Both Muslims and *dhimmīs* liable for capital punishment: highway robbery (*Aṣl*, 7/285, 291, 296); murder (*Siyar*, 5/1854). Muslims liable, *dhimmīs* not: adultery (*Aṣl*, 7/172, 183, 185; *al-Radd 'alā al-Siyar*, 94-5); apostacy (*Aṣl*, 5/368). Muslims liable, *dhimmīs* not mentioned: apostacy due to blasphemy (*Aṣl*, 7/392; *Kharāj*, 182); if they thought *dhimmī* blasphemy merited the death penalty, you would expect them to say so here.

¹⁹ Including: *in potentia*, by renouncing his *dhimmī* status and moving to the abode of war (*dār al-ḥarb*). Shaybānī, *Aṣl*, 7/505-6.

²⁰ The jurists recognize, of course, that *dhimmīs* can commit capital offences, such as murder or highway robbery. But absent this, the only way in which a *dhimmī*'s blood may become licit is if the *dhimma* contract is broken (though whether this consequence followed from the rupture was a matter of dispute). See pp. 20-1 below.

²¹ Jaṣṣās identifies several matters on which Ṭaḥāwī's narration (*riwāya*) from the founding imams differs from the generally accepted one (e.g. *Sharḥ al-Mukhtaṣar*, 2/561, 3/409-10, 5/78). This is not one of them.

²² See Khan, *Heresy*, 34-7.

²³ Ibn Abī Shayba, *Muṣannaḥ*, 20/137-8.

Muslim blasphemer is specifically a doctrine of the Medinans²⁴ (not, therefore of Kufans, like the Ḥanafīs²⁵). And according to the Shāfi‘ī-inclined comparative lawyer ibn al-Mundhir (d. 318/929), Abu Ḥanīfa thought the *dhimmī* who blasphemes should not be killed, because his being a Christian, Jew, Zoroastrian and the like is a greater enormity;²⁶ that is, and all agree it is not permitted to kill him because of *that*.

The logic of this analogy precludes executing the *dhimmī* blasphemer at all, rather than merely ruling out mandatory execution. Here, as for many an Islamic legal rule, examination of the supporting arguments is helpful in confirming we have grasped our lawbooks’ true meaning, and we may now turn to this in more detail. The school developed a range of arguments for its position, of which the following three may be considered the principal ones.

(i) The Prophet’s practice

The Prophet, we are told, did not kill *dhimmī* blasphemers. For example, he forgave a group of Jews when they mockingly substituted *al-sāmu* ‘*alaykum*’ (‘death be upon you’) for the usual greeting of peace, *assalāmu* ‘*alaykum*’.

To the Ḥanafīs’ advantage, this was a widely attested report, included in the canons traditionally considered soundest,²⁷ and came in felicitous variants.²⁸ So, one might argue that by acting under group cover, the Jews were able to create disculpatory confusion about who said what, and the Prophet wouldn’t punish in the absence of an identifiable culprit. But a variant tells us it was *one* of the group who spoke the offending words.²⁹ Perhaps it didn’t count as an insult because, *sām* being an unusual word,³⁰ those Muslims present didn’t realise that a curse was intended; its disparaging impact would be limited if, say, only the Prophet knew. Yet many versions tell us that the Prophet’s wife,³¹ or his companions understood what was meant.³² Or perhaps the preventative to punishment was the deniability of the whole thing; one could easily blame a slip of the tongue or the like. Again, further information contained in variants

²⁴ Khallāl, *Aḥkām ahl al-Milal*, 1/255. Ahmad must have in mind Malik, to whom this is widely attributed; the evidence I will present suggests that Medinan jurists prior to Malik did not hold this doctrine (see p. 12).

²⁵ Nor, if our sources are reliable, of al-Thawrī and his followers. See: Jaṣṣās, *Mukhtaṣar al-Ikhtilāf*, 3/504 and *Aḥkām al-Qur’ān*, 3/85.

²⁶ Ibn al-Mundhir, *Awsaṭ*, 13/483.

²⁷ Bukhārī, *Ṣaḥīḥ*, nos. 2935, 6024, 6030, 6256, 6401, 6927; Muslim: *Ṣaḥīḥ*, nos. 2165, 2166. Also in: ‘Abd al-Razzāq, *Muṣannaf*, 9839; Ibn Abī Shayba, *Muṣannaf*, 27419; Aḥmad, *Musnad*, nos. 13531, 24090, 24851, 25924; Nasā’ī, *Sunan Kubrā*, 10143, 10144, 11507; ibn Māja, *Sunan*, 3698.

²⁸ Our jurists present this and other arguments in typically terse lawbook style and do not expressly draw out the ramifications of the variants they adduce (See: Jaṣṣās, *Mukhtaṣar al-Ikhtilāf*, 3/505-6). I do so here.

²⁹ Aḥmad, *Musnad*, no. 25029; Bukhārī, *Ṣaḥīḥ*, no. 6926; Tirmidhī, *Sunan*, no. 2301.

³⁰ See Bukhārī, *Ṣaḥīḥ*, no. 5687 and Ibn Māja, *Sunan*, no. 3449 for an unrelated report on medicinal matters, in which the companions do not know that *sām* means death, until the Prophet tells them.

³¹ The reports via ‘Ā’isha in Bukhārī and Muslim all contain this element.

³² Reports where the Prophet tells the companions what was said: ‘Abd al-Razzāq, *Muṣannaf*, no. 9840; Bukhārī, *Ṣaḥīḥ*, no. 6926; Muslim, *Ṣaḥīḥ*, no. 2164; Abū Dāwūd, *Sunan*, no. 5206; Tirmidhī, *Sunan*, no. 2301.

rules out this possibility: this was a repeated occurrence,³³ and on some occasions those responsible admitted they were cursing the Prophet.³⁴

Despite all this, the report tells us he never had them killed and expressly forbade others from doing so,³⁵ or even (explicitly) cursing back.³⁶ And if it is objected that the Prophet had for some pragmatic reason decided not to apply an otherwise merited death penalty, one must remember that it was incumbent on him to say so, otherwise his community would incorrectly conclude that they are to spare the blasphemer; yet, he did not.³⁷

The argument rests on an assumption that the Jews in question were *dhimmīs*, or something of the sort. If this is denied, the Prophet would have lacked jurisdiction to impose any fixed penalties on outsiders; this might explain why he spared them, and these reports would in that case not be decisive regarding what to do when one does have such jurisdiction. And if their *dhimmī* status is assumed, there remains a doubt about whether wishing someone harm, death included, is, strictly speaking, an insult. Even an actual assassination attempt may be considered a testament of sorts to one's status. In respect of these vulnerabilities, the next argument may be considered an improvement.

(ii) *Dhimmī* religion is itself blasphemous

It is a common criticism of blasphemy laws that what counts as orthodoxy in one religious group may be considered blasphemy in another. At least as far as *dhimmī* blasphemy and the possibility of capital punishment is concerned, the Ḥanafīs concurred.

Their argument relies on the agreed premises that conquered *dhimmīs* are permitted to practice their religions whilst enjoying protection of their lives, and that included in those religions are beliefs and practices that entail blasphemy. Applying this argument to Christian *dhimmīs*, for example, a Ḥanafī jurist might say:

We know that their religion includes worshipping a human and saying he was God, which constitutes blasphemy against God. And that they consider the Prophet to be a fraud, which constitutes blasphemy against him. Yet God commands us to protect their lives and property. We must accept then, that we are obligated to do so, even as they make blasphemous statements. Far from invalidating the *dhimma* contract, or constituting a capital offence, the *dhimmī*'s engaging in blasphemous acts is a standard corollary of it.

³³ Mālik, *Muwaṭṭa'*, 2/960; Shaybānī, *Muwaṭṭa'*, no. 912; Abd al-Razzāq, *Muṣannaf*, 9840; Aḥmad, *Musnad*, 25029; Bukhārī, *Ṣaḥīḥ*, nos. 6257, 6395, 6928; Muslim, *Ṣaḥīḥ*, no. 2164; Abū Dāwūd, *Sunan*, no. 5206.

³⁴ Aḥmad, *Musnad*, no. 12995; Bukhārī, *Adab*, no. 1105.

³⁵ Aḥmad, *Musnad*, no. 13193; Bukhārī, *Ṣaḥīḥ*, no. 6926; Nasā'ī, *Sunan Kubrā*, 10145.

³⁶ Again, the reports via 'Ā'isha in Bukhārī/Muslim all contain this element (except Muslim, *Ṣaḥīḥ*, no. 2166)

³⁷ Qudūrī, *Tajrīd*, 12/6266.

Or, in the jurists' telegrammatic formulation, "because they have been permitted to practice their religion, which includes worshipping other than God, and denying the veracity of the Prophet (*takdhīb al-rasūl*)."³⁸

A jurist convinced by this argument would no longer need recourse to the 'death be upon you' reports adduced above. But Prophetic support, even if equivocal, is never to be turned down, and those reports remained a mainstay of Ḥanafī defences throughout the ages.

(iii) Blasphemy not a fundamental breach of contract

Turning to our third argument, it is here that we find perhaps the most plausible reconstruction of proto-Ḥanafī thinking.³⁹ It will be recalled that Shaybānī suffices with saying that a *dhimmī*'s contract is broken if he repudiates it and fights the Muslims. This suggests that the main benefit the Muslims expect to gain from the *dhimma* contract is securing a certain loyalty from the *dhimmīs*; specifically, their not waging war against the Muslims. Blaspheming against the Prophet, the argument continues, is not an instance of this and therefore does not, to use contemporary language, 'go to the root of the contract';⁴⁰ we may not like it, we may punish it by non-fatal means, but, for all that, it does not constitute a fundamental breach or repudiation of the contract, as the main benefit of the contract still obtains - so the *dhimmī*'s life remains protected.⁴¹

As a piece of systematic legal reasoning the argument has not inconsiderable force. Whilst the *dhimma* contract as remembered by the jurists contained many regulatory provisions on dress, religious practices and the like, it would seem disproportionate to say that any infringement of them broke the contract and left the non-Muslim's life unprotected. Consequently, most Sunni jurists agreed that, whilst openly displaying wine or pigs in Muslim areas was contrary to the *dhimma* agreement, it didn't break it.⁴² What is required is a principle for determining what infractions are contrary to the essential aims of the contract, and the Ḥanafī solution is a cogent one. It is not surprising, then, that it was appealing to some Shāfi'īs and Ḥanbalīs,⁴³ leading them to adopt a relatively lenient stance on *dhimmī* blasphemy (more on this below).

³⁸ Jaṣṣāṣ, *Sharḥ al-Mukhtaṣar*, 6/142.

³⁹ It may be doubted whether an early authority like Shaybānī would have seen the relationship with *dhimmīs* in abstract contractual terms, as follows here. Such doubt is misplaced. A contractual understanding of relations with conquered peoples was already established in the Roman and Byzantine worlds, in particular through mutually binding 'surrender agreements', and there is ample evidence that this perspective was maintained by the Muslim conquerors and their jurists. See now Levy-Rubin, *Non-Muslims*, 8-57.

⁴⁰ Lord Scarman, in *Woodar Investment Development Ltd v Wimpey Construction UK Ltd* [1980] 1 WLR 277.

⁴¹ Khwāharzādah, *Sharḥ al-Mushkilāt*, 2/538: "because the contract is broken by treachery, and whilst blaspheming against the Prophet is an act of unbelief, it does not constitute treachery, therefore the *dhimma* contract remains intact." The argument, this time with specific mention of belligerence, is also found in Ḥaddādī, *Jawhara*, 2/353.

⁴² (Ḥanafī) Qudūrī, *Tajrīd*, 12/6266; (Mālikī:) ibn Shās, 'Iqd, 1/330-1, 333; al-Qarāfī, *Dhakhīra*, 3/461-2; (Shāfi'ī:) al-Buwayṭī, *Mukhtaṣar*, 830-1; al-Shīrāzī A Ishāq, *Muhaddhab*, 3/318; (Ḥanbalī:) Abū Ya'lā, *Ru'ūs*, 740-1; al-Shīrāzī A. al-Faraj, *Īdāh*, 277.

⁴³ Some, not all; Schacht, perhaps equally taken by its logic, went too far in presenting this view as representative of the classical law *per se*. See Schacht, *Introduction*, 131; and for a range of classical views: ibn 'Abd al-Ḥakam, *Mukhtaṣar*, 450-1; al-Shīrāzī, *Muhaddhab*, 3/318, Abū Ya'lā, *Masā'il*, 2/385-6.

Our survey of the Ḥanafī arguments confirms what was suggested by our account of the headline rulings: *dhimmī* blasphemers may not be killed. With respect to the period considered so far, our findings are inconsistent with Fattal’s (a), (c), and (d), and cast doubt on his (g).⁴⁴

⁴⁴ **End of excerpted material.** The paper next discusses the views of later Ḥanafīs from the mid-9th/15th century onwards: after Ibn Taymiyya’s blasphemy monograph, *al-Ṣārim*, and in part because of its influence, the issue became disputed, with some Ḥanafīs permitting the death penalty, some mandating it, and others maintaining the classical position. This is followed by analysis of the other schools’ views, of the historical evidence on Muslim judicial practice, and of the development of the relevant Prophetic and companion reports. Finally, possible Byzantine, Sasanian and Jewish influence is considered in preliminary fashion.

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